

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

KRISTINA GUNINA

Plaintiff,

-against-

POLICE OFFICERS MAXIM KATS, (tax no. 947926); and HAMEED ASSAIDI, (tax no. 926522) AND POLICE OFFICER "JOHN DOE" no. 1, *individually and in their official capacities (the name "John Doe" being fictitious, as the true name is presently unknown)*,

Defendants.

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FIRST AMENDED COMPLAINT

JURY TRIAL DEMANDED

15-CV-0146 (JG) (RLM)

Plaintiff, KRISTINA GUNINA, by and through her attorney, **KENNETH F. SMITH, PLLC**, complaining of the defendants herein, respectfully shows the Court and alleges:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for violation of plaintiff's rights as secured by 42 U.S.C. §§ 1981, 1983 and 1988; and the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York.

2. Plaintiff's claims arise from an incident that took place on or about May 20, 2014, approximately 2:30pm, on the beach in the Brighton Beach area in Brooklyn, NY during which members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: assault, battery, false arrest, fabrication of evidence and failure to intervene.

3. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant to 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION AND VENUE

4. Jurisdiction of this Court is invoked under 28 U.S.C. § 1343 and 42 U.S.C. §§ 1981 and 1983.

5. The plaintiff further invokes this court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all state law claims and as against all parties that are so related to claims in this action within the original jurisdiction of this court that they form part of the same case or controversy.

6. Venue herein is proper for the United States District Court for the Eastern District of New York under 28 U.S.C. §1391 (a), (b) and (c), in that a substantial part of the events giving rise to the claim occurred within the boundaries of the Eastern District of New York.

JURY DEMAND

7. Plaintiff demands a trial by jury in this action.

PARTIES

8. Plaintiff KRISTINA GUNINA is a resident of Kings County, New York State.

9. The plaintiff is a twenty-five year old female.

10. Defendants Police Officers ("POs") MAXIM KATS, (tax no. 947926); HAMEED ASSAIDI (tax no. (926522) and "JOHN DOE" no. 1 (the name "John Doe" being fictitious, as the true name is presently unknown), are, and were at all times relevant herein, duly appointed and acting officers, servants, employees and agents of the City

of New York and/or the New York City Police Department (“NYPD”), a municipal agency of the City of New York. Defendants Kats, Assaidi and John Doe no. 1 are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of the City of New York, were acting for, and on behalf of, and with the power and authority vested in them by the CITY and the NYPD, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

11. The defendant officers are sued in their individual and official capacities.

STATEMENT OF FACTS

12. On May 20, 2014, approximately 2:30PM, plaintiff was enjoying a day at the beach in the Brighton Beach area of Brooklyn, NY with a friend when they were approached, while lounging on the beach, by two NYPD officers (defendants Kats and Assaidi) who were dressed in uniform.

13. Said officers approached and, without explanation, grabbed and began to handcuff plaintiff’s friend.

14. Plaintiff protested and repeatedly asked defendant officers why they were manhandling her friend.

15. Defendants Kats and Assaidi ignored plaintiff and, in furtherance of their aim to handcuff plaintiff’s friend jumped on top of said person.

16. Plaintiff used her cellular phone to record said use of force by defendants Kats and Assaidi.

17. When defendants Kats and Assaidi observed plaintiff using her cell phone to record the use of force against her friend, they grabbed plaintiff, wrestled her to the ground and got on top of her as well.

18. The above-mentioned actions caused beachgoers in the vicinity to approach the scene to see what event had occasioned the obviously excessive force being used, and to attempt to calm the situation.

19. Defendants Kats and Assaidi applied handcuffs to plaintiff's wrists very tightly, using force far in excess of that required to effectively prevent the use of hands by the plaintiff.

20. After handcuffing plaintiff, defendant Assaidi then placed plaintiff in a NYPD vehicle and repeatedly attempted to unlock the password-protected phone presumably in an effort to delete the video evidence mentioned above.

21. Defendant Assaidi then ordered plaintiff, under threat of imminent harm, both physical and legal, to unlock her phone, whereupon defendant Assaidi deleted the video evidence mentioned above.

22. Plaintiff was then transported to a local precinct for processing.

23. Plaintiff was issued two summonses, one summons, under summons no. 4416471914, for an Open Container of Alcohol, under NYC Administrative Code § 10-125(2)(b); and another, under summons no. 4416471900, for Disorderly Conduct under NY Penal Law § 240.20(1), and ordered to appear in court on August 13, 2014.

24. Upon information and belief, Defendant John Doe no. 1, the supervising sergeant, ratified and approved the above-mentioned summonses which were given to plaintiff.

25. When plaintiff appeared in court on August 13, 2014 she learned that one of the two summonses had not been filed with the Court, and the Court dismissed the second summons.

GENERAL ALLEGATIONS

26. The individual defendants acted in concert in committing the above-described acts against plaintiff.

27. Plaintiff was not in possession of alcohol in any container (open or closed), at the time she was arrested, nor was plaintiff in possession of any other contraband at that time.

28. Plaintiff did not resist arrest at any time during the above-described incidents.

29. Plaintiff did not engage in any violent, threatening or “tumultuous” behavior at any time during the above-described incidents.

30. Defendant police officers unlawfully stopped plaintiff, without reasonable cause that she had committed any crimes, illegally searched plaintiff, without reasonable cause to believe she possessed contraband or weapons, exercised unlawful and excessive force against plaintiff, and illegally arrested plaintiff with no probable cause to believe that she had committed any crimes or violations.

31. The individual defendant officers acted under pretense and color of state law in their individual and official capacities and within the scope of their employment. Said acts by said defendant officers were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendant officers acted maliciously, willfully, knowingly, and with the specific intent to deprive plaintiff of her rights.

32. Upon information and belief, there exists an official NYPD policy with respect to the use of handcuffs.

33. Upon information and belief, there exists a custom within the NYPD of using handcuffs inappropriately, specifically, by applying (and locking) them over-tightly with force far in excess of that needed to actually prevent a handcuffed person from withdrawing their hands from the handcuffs or otherwise “defeating” the handcuffs.

34. Upon information and belief said custom of applying handcuffs over-tightly is used to maliciously cause discomfort, pain and injury to arrested persons in a manner that is difficult to identify or detect since application of handcuffs (subject to the policies and procedures governing their appropriate use) is a part of every arrest.

35. Upon information and belief, there exists an official NYPD policy requiring that a supervising officer approve arrests made by non-supervisory officers.

36. Upon information and belief, there exists an official NYPD policy requiring that arrest paperwork (and/or paperwork generated in connection with the arrest of a person) be signed and/or otherwise approved by a supervising officer.

37. As a direct and proximate result of defendants’ actions, plaintiff experienced personal and physical injury, pain and suffering, loss of liberty, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

38. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants’ actions were motivated by extreme recklessness and indifference to plaintiff’s rights.

FIRST CLAIM
(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

39. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

40. On the above incident date, defendants Kats and Assaidi unlawfully detained, stopped, frisked, patted down, and searched, plaintiff without either reasonable suspicion that plaintiff was committing a crime or probable cause to believe plaintiff had committed a crime.

41. Additionally defendants Kats and Assaidi unlawfully seized property from plaintiff.

42. Accordingly, defendants Kats and Assaidi are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM
(FALSE ARREST UNDER FEDERAL LAW)

43. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein

44. On the above incident date, defendants Kats and Assaidi falsely arrested plaintiff without an arrest warrant, probable cause, or any reasonable suspicion that plaintiff had committed or was in the process of committing a crime.

45. Accordingly, defendant officers are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

THIRD CLAIM
(UNREASONABLE FORCE UNDER FEDERAL LAW)

46. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

47. On the above incident date, defendants Kats and Assaidis' use of force upon plaintiff was objectively unreasonable.

48. The individual defendant officers did not have an objective and/or reasonable basis to use *any* degree of force against plaintiff, since plaintiff was not breaking any laws, and was unarmed, compliant, and did not resist arrest.

49. Defendant officers applied handcuffs over-tightly to plaintiff by closing and locking them into a position where they constricted the hands well in excess of that level of force needed to safely restrain a human being.

50. Those defendants who did not touch the plaintiff but witnessed the unlawful conduct, but failed to intervene and protect plaintiff from this conduct are also liable to plaintiff.

51. Accordingly, defendant police officers are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the First, Fourth, Fifth, Sixth, and Eighth Amendments to the United States Constitution.

FOURTH CLAIM
(FAILURE TO INTERVENE UNDER FEDERAL LAW)

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. On the above described incident date, some of the defendant officers did not have direct contact with plaintiff but had a reasonable opportunity to observe and to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

54. Accordingly, those defendant officers are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

FIFTH CLAIM
(FABRICATION OF EVIDENCE UNDER FEDERAL LAW)

55. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants Kats and Assaidi are liable to plaintiff because, on the above described incident date, they intentionally conspired to fabricate evidence against plaintiff, depriving plaintiff of liberty without due process of law.

57. Furthermore, defendants Kats and Assaidi violated the law by making false statements by drafting and/or signing sworn complaints and false police reports.

58. Furthermore, the defendants Kats and Assaidi violated the law by manipulating evidence to attempt to obtain a prosecution and unjust conviction, while performing the function of investigators.

59. Defendants Kats and Assaidi were on notice that creating fabricated evidence is a clear violation of law because it well established that individuals who knowingly use false evidence at trial to obtain a conviction act unconstitutionally and that this is redressable in an action for damages under 42 U.S.C. § 1983.

60. Defendants Kats and Assaidi are also liable to plaintiffs because they intentionally created false information likely to influence a fact finder's or jury's decision by, inter alia, forwarding false information to prosecutors, drafting and signing a sworn

criminal court complaint and police reports, omitting and/or manipulating evidence, fabricating testimony and evidence, suppressing and concealing exculpatory material and evidence, and forwarding and presenting false information to a prosecutor and/or a court thereby violating plaintiffs' constitutional right to a fair trial, and the harm occasioned by such an unconscionable action is redressable in an action for damages under 42 U.S.C. § 1983.

61. Accordingly, defendants Kats and Assaidi are liable to plaintiff for fabrication of evidence pursuant to 42 U.S.C. § 1983; and the Fifth and Sixth Amendments to the United States Constitution.

SIXTH CLAIM
(UNLAWFUL SEARCH AND SEIZURE OF ELECTRONIC INFORMATION UNDER FEDERAL LAW)

62. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

63. On the above incident date, defendants Kats and Assaidi unlawfully seized plaintiff's cell phone which contained electronically stored cellphone information belonging to plaintiff without either reasonable suspicion that plaintiff was committing a crime or probable cause to believe plaintiff had committed a crime.

64. On the above incident date, defendants Kats and Assaidi accessed, used, observed, deleted, ruined, spoiled, evaluated or otherwise used the electronically stored information on plaintiff's cell phone without a search warrant in violation of the Constitutions of the United States of America and the State of New York.

65. Accordingly, defendants Kats and Assaidi are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands a jury trial and the following relief, jointly and severally against the defendants:

- a. Compensatory damages in the amount of One Million Dollars (\$1,000,000);
- b. Punitive damages in the amount of Two Million Dollars (\$2,000,000);
- c. Costs, interest and reasonable attorney's fees, pursuant to 42 U.S.C. § 1988;
- and,
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: Brooklyn, New York
February 27, 2015

A handwritten signature in blue ink, appearing to read "Ken F. Smith", is written over a horizontal line.

Law Offices of Kenneth F. Smith, PLLC
16 Court Street, Suite 2901
Brooklyn, New York 11241
(646) 450-9929
kfslawfirm@gmail.com
Attorney for Plaintiff